Aman Diwedi vs State Of U.P. Thru. Prin. Secy. Civil ... on 4 March, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Neutral Citation No. - 2024:AHC-LKO:19547

Court No. - 27

Case :- APPLICATION U/S 482 No. - 1928 of 2024

Applicant :- Aman Diwedi

Opposite Party :- State Of U.P. Thru. Prin. Secy. Civil Secrt. Lko. And Another

Counsel for Applicant :- Bal Keshwar Srivastava,Rishabh Srivastava,Sachin Kumar Mishra,V

Counsel for Opposite Party :- G.A.

Hon'ble Subhash Vidyarthi,J.

1. Heard Sri Bal Keshwar Srivastava, the learned counsel for the applicant, Sri Manish Kumar Pandey, the learned A.G.A.-I and Sri Pankaj Kumar Shukla, Advocate who has put in appearance on behalf of the opposite party no.2 and filed his vakalatnama, which is taken on record.

2. The present petition under Section 482 Cr.P.C. has been filed seeking quashing of the charge sheet no.1 of 2022, cognizance and summoning order dated 14.02.2023 along with entire proceedings of Case No.3761 of 2023: State Vs. Bhupendra Dwivedi, arising out of Case Crime No.312 of 2021, under Section 304 I.P.C. Police Station Kotwali Dehat, District Gonda pending in the Court of learned Judicial Magistrate Ist Court, Gonda. The learned counsel for the applicant submitted that the applicant is innocent and he has been falsely implicated in the present case.

3. On 21.03.2021, the father of the applicant had filed an F.I.R. No.124 of 2021, under Sections 379, 411 I.P.C. in Police Station Kotwali Dehat stating that a bicycle was stolen from his house at about

11.00 p.m. on 20.03.2021. He found that one Rajesh was getting the bicycle repaired at a shop. The aforesaid complainant caught hold of Rajesh and when he tried to run away, some persons present there gave two-four slaps to him in the attempt to catch hold of him. The person fell down and has suffered a minor injury on his head. The F.I.R. stated that beside the aforesaid complainant Sunil, Ranjit and Aman (the applicant) and some other persons were involved in catching hold of thief. The medico legal examination report of Rajesh prepared on 21.03.2021 mentions a lacerated wound on left side of his head.

4. On 06.08.2021 an F.I.R. No.312 of 2021, under Section 304 I.P.C. was lodged against the applicant, his father Bhupendra and two other persons Sunil and Ranjit in furtherance of an application under Section 156 (3) Cr.P.C. filed on 06.04.2021 stating that the accused person had badly beaten up the complainant's son Rajesh Shukla while he had gone to fetch some goods to the market and thereafter he was handed over to the police and was put in custody. A false report regarding theft of a bicycle was lodged and he was lodged in jail on 21.03.2021. As his condition was serious, he was got admitted to District Hospital, Gonda from where he was referred to Balrampur Hospital, Lucknow from where he was sent to Medical College, Lucknow and ultimately he died on 01.04.2021. The F.I.R. stated that the son of the opposite party no.2 died because of the injuries inflicted by the accused persons and because of connivance of the police persons with the accused persons. The opposite party no.2 had gone to the police station for lodging of a report but the police personnel abused and threatened him and turned him out of the police station. The opposite party no.2 thereafter gave an application to the Superintendent of Police concerned but still his report was not registered. In these circumstances, he had approached the Magistrate by filing an application under Section 156 (3) Cr.P.C.

5. After the report was lodged on the direction of the Magistrate, the investigation was carried out and a charge sheet has been submitted under Section 323 I.P.C. only.

6. The submission of the learned counsel for the applicant is that from the allegations levelled in the F.I.R. no offence under Section 323 I.P.C. is made out. The learned counsel for the applicant has next submitted that the F.I.R. has been lodged as a counterblast action because the father of the applicant had filed an F.I.R. regarding theft of a bicycle committed by the deceased. The learned counsel for the applicant lastly submitted that the offence under Section 323 I.P.C. is a non-cognizable offence and therefore it has to be tried as a complaint case and not as a state case.

7. Sri Manish Kumar Pandey, the learned A.G.A.-I and Sri Pankaj Kumar Shukla, the learned counsel for the opposite party no.2 have opposed the application.

8. Sri Pankaj Kumar Shukla, the learned counsel for the opposite party no.2 has submitted that the son of the complainant was arrested on the allegation of commission of petty offence of theft of a bicycle. He was beaten up by the accused persons causing injuries to him and immediately thereafter he was handed over to the police and was taken into custody. The son of the opposite party no.2 died while in custody. He has submitted that the police has not conducted the investigation in a proper manner and the charge sheet has been filed for commission of a non-cognizable offence only, without any proper investigation.

9. I have considered the submissions of learned counsel for the parties and gone through the material placed on record.

10. A copy of the charge sheet has been annexed with the application wherein it is recorded that the statement of the complainant was recorded under Section 161 Cr.P.C. wherein he supported the F.I.R. allegations and he further submitted that he could not meet his son in the jail. Ten days' after his son was got admitted to the district hospital the complainant got information about this fact and upon reaching the hospital he found his son in an unconscious condition and he was referred to Lucknow, where he died during treatment. The brother of the deceased and the wife of the deceased stated that the deceased had gone to buy some goods and he was beaten up there and he had suffered laceration in his head. An eye witness Nanke Shukla stated in his statement under Section 161 Cr.P.C. that he had seen all the named accused persons were beating the deceased with kicks and fists and they had hit the deceased with rim of bicycle and he was bleeding from his head. After some time he came to know that he has been sent to jail from where he was referred to the district hospital and then to a hospital at Lucknow where he died.

11. The shopkeeper of the shop where the allegedly stolen bicycle was being repaired stated that the deceased was slapped at his shop. The Investigating Officer further recorded that the deceased was examined medically within forty one minutes since his arrest. The charge sheet refers to some medical report as per which the deceased was suffering from respiratory failure seizure and he was a drug addict. However, no witness has given any statement to this effect. The doctor who had conducted the medico legal examination of the deceased after his arrest, stated in his statement that he had suffered an injury on left side of his head but the injury was simple in nature.

12. The Investigating Officer has concluded that merely offence under Section 323 I.P.C. is made out against the accused person and accordingly submitted a charge sheet for commission of offence under Section 323 I.P.C. only.

13. So far as the first submission of the learned counsel for the applicant that even offence under Section 323 I.P.C. is not made out from the allegations levelled in the F.I.R. and the material collected during investigation, suffice it to say that all the witnesses, including the shopkeeper and the father of the applicant himself, have stated that the deceased was beaten up by the accused persons, including the applicant.

14. Section 323 I.P.C. reads as follows:

> "323. Punishment for voluntarily causing hurt.? Whoever, except in the case provided for by section 334, voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both."

Hurt is defined in Section 319 Cr.P.C. which is as follows:

"319. Hurt.? Whoever causes bodily pain, disease or infirmity to any person is said to cause hurt.

Section 321 I.P.C. provides as follows:

"321. Voluntarily causing hurt.?Whoever does any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said ?voluntarily to cause hurt?."

15. From a cumulative reading of the aforesaid Sections, it appears that for making out a case for punishment for causing voluntary hurt merely this much is required that any person has voluntarily caused bodily pain to any person is hereby liable to be punished for voluntarily causing hurt under Section 323 I.P.C.

16. The F.I.R. in the present case categorically states that the son of the opposite party no.2 was beaten up by the applicant and the co-accused persons and even his father, who is a co-accused person stated about presence of the applicant at the time of incident and he has further stated that the persons present had beaten up the deceased. Therefore the submission that from the allegations levelled in the F.I.R. and the material collected during investigation an offence under Section 323 I.P.C. is not made out, is without any force and the same cannot be accepted.

17. So far as the next submission of the learned counsel for the applicant that the F.I.R. has been lodged as a counterblast action, the material available on record indicates that the father of the applicant had lodged an F.I.R. alleging that the deceased had stolen a bicycle form the applicant's house in the night of 20/21.03.2021. The complainant came to know through some undisclosed source that the bicycle had been taken towards Mandey trisection on Tarabganj road. Upon getting information from some undisclosed source the applicant's father reached there along with the applicant and co-accused Sunil, Ranjit and several other persons and caught hold of the deceased, who was allegedly standing there for getting the bicycle repaired. The F.I.R. states that he tried to run away and the persons present there slapped him resulting in his fall and injury on his head. It is alleged that the deceased confessed his guilt and was handed over to the police.

18. The statements recorded by the Investigating Officer categorically state that the deceased was beaten up by the accused persons. The shopkeeper has also categorically stated that the deceased was beaten up by the accused persons. Father of the applicant, who is a co-accused, stated that the accused persons were present there and the deceased was beaten up by the persons present there. Therefore, it cannot be accepted that from the material available on record at this stage, it appears that the deceased was not beaten up by the named accused persons.

19. The learned counsel for the applicant has next submitted that the deceased was beaten up in exercise of right of private defence of property as provided under Section 105 I.P.C.

Section 105 I.P.C. reads as under:

> "105. Commencement and continuance of the right of private defence of property.? The right of private defence of property commences when a reasonable apprehension of danger to the property commences.
>
> The right of private defence of property against theft continues till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered.
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> The right of private defence of property against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues.
>
> The right of private defence of property against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief.
>
> The right of private defence of property against house-breaking by night continues as long as the house-trespass which has been begun by such house-breaking continues."

20. It is nobody's case that the deceased was beaten up while he was trying to run away with the stolen bicycle and the accused persons were trying to protect the bicycle from being stolen. The deceased was beaten up while he was trying to ran away. Therefore, from the statements recorded by the Investigating Officer it does not appear that the deceased was beaten up while exercising the right of private defense of property.

21. So far as the last submission of learned counsel for the applicant that Section 323 I.P.C. is a non-cognizable offence and therefore the applicant cannot be prosecution in a state case, this aspect of matter needs some consideration.

22. As the F.I.R. was initially lodged for commission of a cognizable offence but after the investigation a charge sheet has been filed in respect to a non-cognizable offence. Therefore, it appears that the applicant should be tried treating the case to be a complaint case under Section 2 (d) Cr.P.C.

23. Accordingly, the application is partly allowed. The cognizance and summoning order dated 14.02.2023 passed in the proceedings of Case No.3761 of 2023: State Vs. Bhupendra Dwivedi, arising out of Case Crime No.312 of 2021, under Section 304 I.P.C. Police Station Kotwali Dehat, District Gonda pending in the Court of learned Judicial Magistrate Ist Court, Gonda are quashed and the learned Judicial Magistrate-I, Gonda is directed to treat the charge sheet as a complaint case under Section 2 (d) of Cr.P.C. and proceed in accordance with law accordingly.

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(Subhash Vidyarthi,J.) Order Date :- 4.3.2024 Ram.